

Step-by-step guide for documenting, filing complaints, and building a case — Action Checklist

PRINT THIS PAGE AND KEEP IT SOMEWHERE VISIBLE

SECURE YOUR DIGITAL EVIDENCE

- ☐ **Secure Your Company Email:** Export and screenshot all relevant company emails immediately, including sent messages, received communications, and folder organization with visible dates and times before your access is revoked.
- ☐ **Capture Messaging Platform Conversations:** Screenshot all Slack, Teams, Google Chat, or Discord conversations that discuss your performance, complaints you filed, or conversations related to your termination before losing access.
- ☐ **Export Performance Review Documents:** Screenshot or export your performance reviews, goal sheets, 360-feedback, and any written commendations from Workday, BambooHR, Lattice, or whatever performance management system your employer used.
- ☐ **Screenshot HR and Benefits Records:** Capture records of any leave requests, accommodation requests, benefits information, and HR complaints you filed through internal systems before your company access is terminated.

SCREENSHOT EVIDENCE CORRECTLY

- ☐ **Include Full Context in Every Screenshot:** Ensure each screenshot captures the date, time, sender and recipient fields, and URL bar in the browser to establish clear authenticity and provenance of the evidence.
 - ☐ **Use Your Phone Camera as a Backup:** Photograph your screen with your phone instead of using a screenshot tool whenever possible, since phone photos are harder to claim were digitally altered or manipulated.
 - ☐ **Screenshot Document Metadata Properties:** Capture document properties showing author, creation date, and edit history by taking screenshots of file information panels, as this establishes an authentic timeline of when records were created or changed.
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- ❑ **Document Any Evidence Deletion Attempts:** Screenshot any system access warnings, disappearing messages, emails that show deleted status, or notifications about revoked access to build a record of potential destruction of evidence.

DOCUMENT AND PROTECT YOUR CASE

- ❑ **Avoid Unauthorized System Access:** Do not attempt to access company systems, email accounts, or databases after your authorization has been revoked, as unauthorized access can undermine your legal standing and damage your credibility with attorneys.
- ❑ **Organize Everything in a Personal Case File:** Create a secure, backed-up folder on your personal devices where you store all screenshots, exports, and documentation organized by date and category to present a clear narrative when meeting with an attorney.
- ❑ **Keep Records of Witness Information:** Write down names, contact information, and brief notes about colleagues who witnessed the circumstances surrounding your termination or your prior complaints, as their testimony may support your case.
- ❑ **Preserve Physical Documentation:** Collect and photograph any physical documents you received or signed during your employment, including your termination letter, performance improvement plans, and any written warnings or commendations.

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